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Important Points for Your NIW Petition

When filling out the *Proposed Employment/Proposed Endeavor* and the *Research Background Inquiry Form* (RBIF) tabs, please keep in mind that the approval of your National Interest Waiver (NIW) petition depends on meeting the three requirements, or "prongs," established in *Matter of Dhanasar*: a precedent decision made by the United States Citizenship and Immigration Services' (USCIS) Administrative Appeals Office that established the current legal framework for evaluating NIW petitions. Below, we have summarized these three prongs to help guide the information you provide for your case.

Prong 1: The person's proposed endeavor has both substantial merit and national importance.

1. This prong consists of two interrelated components: *substantial merit* and *national importance*. The criterion of substantial merit addresses the significance of your proposed endeavor (or overarching research objective), explaining why your work matters in a broader scientific, technological, or societal context. National importance, on the other hand, concerns the specific benefits or impacts your proposed work is likely to have on the United States as a whole. For instance, the development of novel anti-cancer therapeutics targeting colon cancer may be regarded as having substantial merit due to the severe morbidity, mortality, and economic burden associated with cancer. Meanwhile, its national importance could be demonstrated by the fact that colon cancer remains one of the leading causes of cancer-related deaths among both men and women in the United States, resulting in tens of thousands of fatalities each year.

2. With the above in mind, to prove that your proposed endeavor has substantial merit, it is crucial to demonstrate that your proposed endeavor is inherently valuable to your field or to broader, important applications. This value could come from benefits such as boosting the economy, promoting scientific or technological progress, advancing educational goals, improving the healthcare sector, or strengthening national security.

3. To prove that your proposed endeavor has national importance, it is vital to demonstrate that it offers particular benefits to the United States, even beyond just to your employer. For example, publishing findings that benefit an area of national interest is one way for a researcher to show the national implications of their work because it demonstrates their influence on topics relevant to the United States

   **In the Proposed Employment/Proposed Endeavor tab, it can be helpful to mention any research that you may be doing beyond your current employment, particularly if your job has no specific research duties.*

4. (Only applicable if you selected our support letter option) We recommend submitting testimonial letters from governmental/quasi-governmental agencies to support the national importance of your work. These testimonial letters are particularly helpful for applicants who find it more difficult to demonstrate the national importance of their proposed endeavor. Some examples of these applications include:

   a. An employee of a technology company who is not permitted to circulate the results of their research

   b. A physician who has no research duties and strictly performs clinical duties

   c. A teacher who has no research duties and only conducts classroom instruction

   If you cannot publish the results of your research conducted as part of your employment or if you have no official research duties, please let us know right away so that we can adjust our strategy for your case accordingly.

Prong 2: The person is well-positioned to advance the proposed endeavor

1. To satisfy this prong, we will describe, across the documents that make up your Petition Package, your education, professional background, and past achievements related to your proposed endeavor, ultimately showing that you are well-positioned to continue contributing to your proposed endeavor in a meaningful way.

2. The following is a list of the types of accomplishments we may discuss to demonstrate that you are well-positioned to advance your proposed endeavor. Please note that it is perfectly fine if your experience does not include all of the items listed here. This list is merely intended to help you know what kinds of experiences to include when completing your RBIF tab:

    a. Publication and citation records

    b. Specific instances of how your work has impacted the work of others in your field, i.e., notable citations

    c. The funding of your research by public and private entities

    d. Your enlistment by scholarly venues to carry out peer review

    **The list is non-exclusive, so we may be able to discuss additional items beyond it.*

<u>Prong 3:</u> On balance, it would be beneficial to the United States to waive the job offer for the person and thus the permanent labor certification requirements.

1. For this prong, the goal is to demonstrate that allowing you to work in the United States would be so beneficial to the nation that the requirement of a job offer, and thus of the permanent labor certification, should be waived. Satisfying this prong is closely related to the first two prongs, as proving that your proposed endeavor is nationally important and that you are well-positioned to continue advancing it already provides an illustration of how your continued work in the United States is beneficial to the nation.

2. Across your documents, we will also show that you meet this prong by emphasizing that a labor certification is impractical, and that, because of your unique skills and knowledge, your continued efforts and research benefit the United States, even if American workers are available. Additionally, we will show that there is an urgent need for your contributions.

Other Considerations:

In addition to asking for information about the substantial merit and national importance of your proposed endeavor, the RBIF also asks about how your research relates to *Critical and Emerging Technologies (CET)* fields. CETs are scientific and technological fields identified by the United States' National Science and Technology Council as areas with significant implications for national security, economic prosperity, and leadership in innovation.

To answer the subsection "2. Please list up to three CET categories, sub-areas, or specializations that your work contributes to" in the RBIF, please review the CET list, which can be found in your Client Packet. If possible, please identify any fields (and/or subfields) that are a good fit for your research and proposed endeavor. If you can identify relevant CET fields (and/or subfields), list 1-3 of the most fitting ones. If none of the fields (and/or subfields) are a good fit for your research and proposed endeavor, you may write "N/A" in this section or list non-CET-related fields or specializations.

Please also note that completing the "Supplementary Information" under the RBIF is optional for NIW cases. However, if you have relevant achievements to describe in this section, such as notable memberships, major awards that you have received, or media coverage of your research, you may list them here. We may be able to discuss some of this information in the documents we draft for your Petition Package.

If you have any questions about these points, please do not hesitate to reach out to us using the Messages tab in your account. Thank you!